

بِسْمِ اللَّهِ الرَّحْمَنِ الرَّحِيمِ

ISLAMIC STUDIES

Basic Sources of Sharī'ah

Al-Qur'ān · Al-Sunnah · Ijmā' · Qiyās

Uṣūl al-Fiqh | Foundations of Islamic Jurisprudence

الشريعة
الإسلامية

The Foundational Hadith of Mu'ādh ibn Jabal (رضي الله عنه)

Sunan Abī Dāwūd, Hadith 3592 | Referenced by Uṣūl al-Fiqh scholars universally

The Prophet ﷺ asked Mu'ādh ibn Jabal upon sending him to Yemen as a judge:

Prophet ﷺ: "How will you judge when a case is brought before you?"

Mu'ādh: "I will judge according to the Book of Allah."

Prophet ﷺ: "What if you do not find it in the Book of Allah?"

Mu'ādh: "Then according to the Sunnah of the Messenger of Allah ﷺ"

Prophet ﷺ: "What if you find it in neither?"

Mu'ādh: "Then I will exercise my own independent reasoning (Ijtihād) and spare no effort."

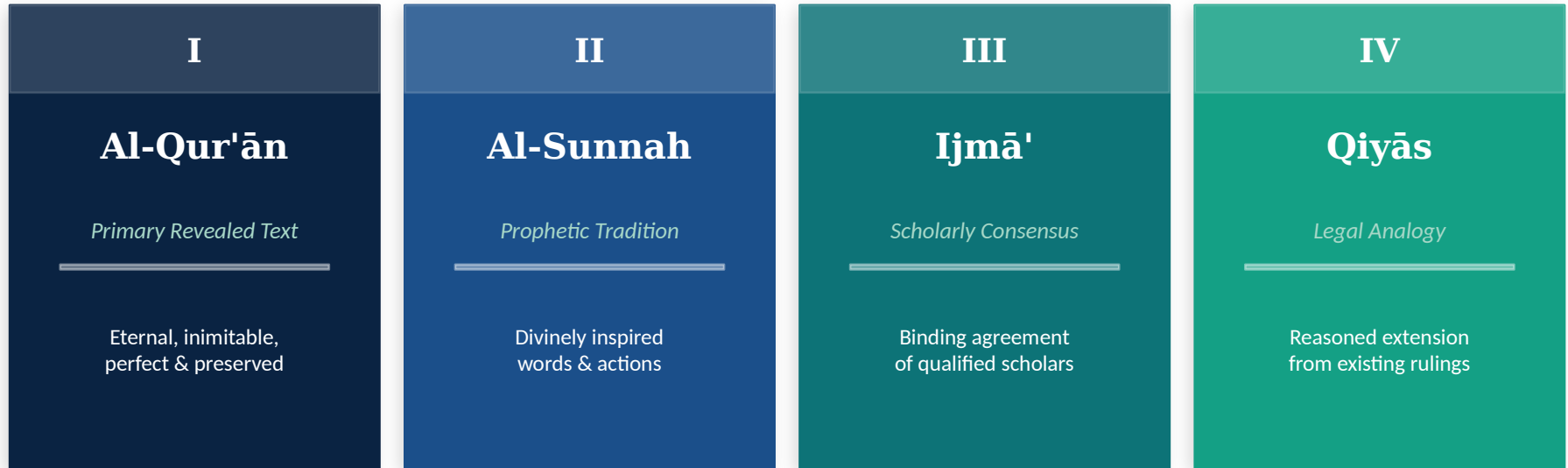
Then the Messenger of Allah ﷺ struck his chest and said: **"Praise be to Allah Who has guided the messenger of the Messenger of Allah to that which pleases the Messenger of Allah."**



Scholarly Note: While some hadith critics graded this narration as da'īf (weak), the vast majority of Uṣūl al-Fiqh scholars upheld its meaning as authenticated by the collective principles of Islamic jurisprudence. The three-source hierarchy — Qur'ān → Sunnah → Ijtihād — underpins all four major Sunni legal schools.

Shari'ah: Definition, Scope & Hierarchy of Sources

Shari'ah (Arabic: شريعة) literally means 'the path to a watering place' — a straight road to spiritual and moral sustenance. Technically, it refers to the comprehensive divine legal and ethical framework derived from the primary revelatory sources (Qur'ān and Sunnah) and supplemented by scholarly consensus and legal analogy, governing every dimension of Muslim life: worship, transactions, family law, ethics, and governance.



* Sources listed in order of juristic authority — each is subsidiary to the one preceding it.

The Holy Qur'ān — Revelation and Compilation

Nature of Revelation (Waḥy)

- Revealed over 23 years (610–632 CE) — 13 years in Makkah, 10 in Madīnah.
- Transmitted through Jibrīl (عليه السلام) in two forms: literal Qur'ānic revelation and non-Qur'ānic Sunnah.
- Gradual (tanjīm) revelation ensured progressive moral transformation of society.
- Revealed in seven aḥruf (modes/dialects) to ease recitation across Arab tribes.
- Preserved simultaneously in two ways: memorization by thousands of Companions (Ḥuffāẓ) and written on available materials (bones, bark, leaves).

Stages of Compilation

Era of the Prophet ﷺ

Scribes (Kuttāb al-Waḥy) recorded verses under direct prophetic supervision. Order of sūrahs & āyāt was divinely directed, not chronological.

Era of Abū Bakr (رضي الله عنه)

After 70 Ḥuffāẓ were martyred at Yamāma (633 CE), Zayd ibn Thābit compiled the first complete muṣḥaf. Criterion: written material + two reliable witnesses.

Era of 'Uthmān (رضي الله عنه)

إِنَّا نَحْنُ نَزَّلْنَا الذِّكْرَ وَإِنَّا لَهُ لَحَافِظُونَ

"Verily, it is We Who have sent down the Dhikr (Qur'an), and surely We will guard it." — Al-Hijr 15:9

The 'Uthmānic muṣḥaf became the universally accepted standard — preserved identically across 1,400+ years without a single letter's alteration.

Authenticity of the Qur'ānic Text

1

Tawātur — Mass Transmission

The Qur'ān was transmitted by such a large number of narrators in every generation that fabrication is rationally inconceivable. This mutawātir status places its authenticity above all doubt — a standard no other ancient text achieves.

2

Oral Preservation — The Ḥuffāz Tradition

Memorization (ḥifẓ) was institutionalized from the first revelation. By the Prophet's death, thousands had memorized the complete Qur'ān verbatim. Today, millions of Ḥuffāz across every continent preserve the text in identical pronunciation and order.

3

Written Manuscripts — Textual Consistency

Oldest extant manuscripts (Birmingham Qur'ān, 568–645 CE; Sana'a MS; Topkapi MS) are letter-perfect matches with the contemporary muṣḥaf — an unparalleled consistency in manuscript tradition across 14 centuries.

4

The I'jāz Challenge — Literary Inimitability

The Qur'ān issues an open challenge (taḥaddī) to all humanity to produce even one comparable sūrah (Al-Baqarah 2:23–24). Despite centuries of literary rivalry, no human composition has met this criterion — affirming its divine origin.

The combination of tawātur, ḥifẓ, manuscript evidence, and divine challenge constitutes an unassailable proof of the Qur'ān's perfect preservation.

Al-Ḥadīth — Definition, Nature & the Necessity of Sunnah

Ḥadīth (الحديث): Literally 'speech' or 'report.' Technically, it denotes any saying (qawl), action (fi'l), tacit approval (taqrīr), or attribute (ṣifa) reported from the Prophet Muḥammad ﷺ. The term **Sunnah** refers to the normative practice of the Prophet ﷺ — a broader concept encompassing the totality of his example as a living interpretation of the Qur'ān.

Why Is the Sunnah an Indispensable Source of Law?

Qur'ānic Imperative

Allah commands believers: وَأَطِيعُوا اللَّهَ وَأَطِيعُوا الرَّسُولَ — 'Obey Allah and obey the Messenger.' (Al-Mā'idā 5:92) Obedience to the Prophet ﷺ is inseparable from obedience to God.

Interpretation of the Qur'ān

The Qur'ān issues general commands (e.g., 'establish prayer,' 'pay zakāh') without specifying method, quantities, or conditions. The Sunnah operationalizes these commands through practical demonstration.

Independent Legislative Authority

The Prophet ﷺ also legislated matters not directly addressed in the Qur'ān. Allah affirms: وَمَا يَنْطَلِقُ عَنِ الْهَوَىٰ — 'He does not speak of his own desire.' (Al-Najm 53:3-4) His pronouncements are binding revelation.

Preservation of Prophetic Model

Without the Sunnah, Islamic worship, jurisprudence, and ethics would lack their living embodiment — the Prophet ﷺ being described in the Qur'ān as *uswa ḥasana* (the finest example).

Authenticity of Ḥadīth — The Science of ‘Ilm al-Rijāl & Isnād Criticism

Structure of a Ḥadīth

Isnād (السند): The chain of transmitters, tracing the narration back to the Prophet ﷺ through successive narrators.

Matn (المتن): The actual text of the narration — the content of what the Prophet ﷺ said, did, or approved.

Rāwī (الراوي): Each individual narrator in the chain, whose trustworthiness (‘adāla) and precision (ḍabt) are meticulously evaluated.

Classification by Authenticity

Ṣaḥīḥ (Authentic)

Continuous chain of trustworthy, precise narrators, free of defect and contradiction.

Ḥasan (Good)

Meets all criteria of ṣaḥīḥ but one narrator is slightly less precise; still legally binding.

Ḍa‘īf (Weak)

A defect in chain or narrator renders it unreliable for legal rulings; permissible in virtuous acts (faḍā’il) with conditions.

The Five Criteria for a Ṣaḥīḥ Ḥadīth (al-Shurūṭ al-Khamsa)

1. Continuous Chain (ittiṣāl al-sanad) — every narrator heard from the next without break.
2. Narrator Integrity (‘adāla) — every narrator must be a Muslim of moral uprightness.
3. Precision (ḍabt) — excellent memory or accurate written records.
4. Freedom from Hidden Defects (salāma min al-‘illa al-qādiḥa).
5. Freedom from Anomaly (salāma min al-shudūdh) — not contradicting stronger narrations.

(Fabricated)

evidence.

The science of Ḥadīth criticism (muṣṭalaḥ al-ḥadīth) is considered the most sophisticated biographical verification system ever developed in human intellectual history.

Importance of Ḥadīth in Islamic Law & Scholarship

Bayan al-Tafṣīl — Detailed Explanation

The Sunnah elaborates on Qur'ānic injunctions. E.g., the Qur'ān commands 5 prayers; the Sunnah specifies their timings, raka'āt, positions, and conditions of validity.

Bayan al-Nasakh — Abrogation

In select cases, the Sunnah abrogates earlier rulings (within proper scholarly parameters), reflecting the dynamic legislative wisdom of the divine-prophetic system.

Bayan al-Takhsīṣ — Qualification

The Sunnah qualifies general Qur'ānic rulings. E.g., the inheritance share of a 'heir' (Al-Baqarah 2:180) is qualified by the Sunnah.

Bayan al-Tashrī' — Independent Legislation

The Sunnah introduces independent rulings on matters the Qur'ān is silent about — e.g., the prohibition of gold and silk for men — constituting an independent legislative source.

Bayan al-Taqrīr — Corroboration

The Sunnah confirms what the Qur'ān states, providing independent testimony that strengthens the ruling's legal force and interpretive clarity.

Ijmā' — Scholarly Consensus as a Source of Islamic Law

Ijmā' (الإجماع): Literally 'agreement.' Technically, it is the unanimous agreement of all qualified mujtahids (independent jurists) of the Muslim community in any given era on a specific legal ruling (ḥukm shar'ī), following the death of the Prophet ﷺ. Ijmā' constitutes the third primary source of Islamic law and carries binding legal authority when established.

Qur'ānic & Sunnah Basis

آيَةُ ١٥ — النساء: وَمَنْ يُشَاقِقِ الرَّسُولَ مِنْ بَعْدِ مَا تَبَيَّنَ لَهُ الْهُدَىٰ وَيَتَّبِعْ غَيْرَ سَبِيلِ الْمُؤْمِنِينَ تُولِهِ مَا تَوَلَّى

"Whoever opposes the Messenger after guidance has been made clear and follows other than the way of the believers — We will give him what he has taken..." (Al-Nisā' 4:115)

Hadīth:

"My community shall never unite upon an error." (Ibn Mājah) — The Prophet's ﷺ assurance underpins the infallibility of genuine ijmā'.

Types & Conditions

Ijmā' Ṣarīḥ (Explicit)

Every jurist explicitly voices agreement — the strongest and most binding form.

Ijmā' Sukūṭī (Tacit)

Some jurists pronounce a ruling; others remain silent without objection. Majority consider it binding.

Conditions

Participants must be qualified mujtahids; agreement must occur after the Prophet's ﷺ death; it must span all eligible scholars of the age; no dissent may exist.

Binding Authority

Once established, ijmā' cannot be overturned by individual ijtihād — it is as legally certain as a qāṭi' (definitive) Qur'ānic text.

Scope: Ijmā' on obligatory matters (farḍ), prohibitions (ḥarām), and core doctrines is binding upon all Muslims. Dissent after established consensus constitutes a serious juristic error.

Qiyās — Legal Analogy as the Fourth Source of Sharī'ah

Qiyās (القياس): Literally 'measuring' or 'comparing.' Technically, it is the extension of a Sharī'ah ruling from an original case (aṣl) to a new case (far') because both share the same effective cause ('illa). Qiyās is the primary instrument of jurists when confronting novel legal questions absent from the Qur'ān and Sunnah, enabling Sharī'ah to remain dynamic and responsive across all eras.

The Four Essential Components of Qiyās

الأصل
Aṣl

Original Case

The source ruling from Qur'ān or Sunnah from which the analogy is drawn.

الفرع
Far'

New Case

The contemporary issue seeking a ruling, not explicitly addressed by the texts.

الحكم
Ḥukm

The Ruling

The legal verdict (ḥukm) of the original case, which is extended to the new case.

العلة
'Illa

Effective Cause

The ratio legis — the common attribute linking aṣl and far', justifying extension.

Qur'anic Basis — Al-Ḥashr 59:2:

فَاعْتَبِرُوا يَا أُولِيَ الْأَبْصَارِ — 'So take lesson, O people of vision!' The word i'tibār shares its root with qiyās, indicating rational analogical extension as a divinely endorsed juristic method.

Classic Example:

Khamr (wine) is prohibited for its intoxicating property ('illa = iskar). All intoxicants share this 'illa, regardless of form. Therefore, heroin, cocaine, and synthetic drugs are prohibited by qiyās — though unmentioned in the Qur'ān.

Summary: Comparative Overview of the Four Sources of Shari'ah

Source	Arabic Term	Nature	Basis of Authority	Binding Status	Scope
Qur'ān	القرآن الكريم	Verbatim Word of Allah	Divine Revelation (Waḥy Matlū)	Absolutely Binding (Qāṭi')	Universal & Eternal
Sunnah	السنة النبوية	Prophetic Words, Acts & Approvals	Divinely Inspired (Waḥy Ghayr Matlū)	Binding — Ṣaḥīḥ & Ḥasan	Interpretive & Legislative
Ijmā'	الإجماع	Unanimous Jurist Consensus	Qur'ān 4:115 + Hadīth 'no error'	Binding Once Established	Post-prophetic Novel Issues
Qiyās	القياس	Analogical Juristic Reasoning	Qur'ān 59:2 + Rational Extension	Binding with Valid 'Ilā	Contemporary Novel Cases

* The four sources are hierarchically ordered. No lower source may contradict a higher one. Qiyās requires a competent mujtahid and may not apply where a naṣṣ (explicit text) exists.

C o n c l u s i o n

The Integrated Architecture of Sharī'ah

- ✦ The four sources of Sharī'ah — Qur'ān, Sunnah, Ijmā', and Qiyās — form an integrated, hierarchically ordered juristic system that is both divinely rooted and intellectually sophisticated.
- ✦ The Qur'ān provides the eternal, infallible foundation; the Sunnah operationalizes and interprets it; Ijmā' provides the community's collective safeguard; and Qiyās extends the law rationally to emerging realities.
- ✦ Islamic jurisprudence (fiqh) is not static dogma but a living discipline that balances divine permanence with scholarly adaptability — the hallmark of a legal system designed for all times.

*"I have left among you two things; you will never go astray as long as you hold fast to them: **the Book of Allah and the Sunnah of His Prophet.**"*
— Muwatta' Imam Mālik, narrated from the Prophet ﷺ

وَاللَّهُ أَعْلَمُ — And Allah knows best.